

DEBT MANAGEMENT PARTNERS, LLC v. CALLAHAN

21CF13502

**PLAINTIFF'S MOTION FOR ORDER TO DEEM MATTERS
ADMITTED**

This is a limited jurisdiction debt collection action. Before the Court is plaintiff's unopposed motion to deem admitted all matters contained in plaintiff's Requests for Admission and Genuineness of Documents, Set One.

On 06/30/21, defendant first appeared in the action by way of an answer, including her mailing address of 516 Rock Forge Loop, Angels Camp, CA 95222. On 07/21/21, plaintiff served upon defendant Requests for Admission, Set One, by regular US Mail at defendant's service address.

Pursuant to CCP §§ 1013 and 2033.250, defendant had 35 days from the mailing to provide a verified written response. Defendant did not timely (or ever) serve responses. (See Kenosian Declaration, Paragraph 5.)

Pursuant to CCP §2033.280(b), the party propounding RFAs may "move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction." The trial court "shall" grant the motion unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response in substantial compliance with Section 2033.220. (See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777-778.) Trial courts have no discretion but to grant the admission motion, usually with fatal consequences for the defaulting party. (See *Lattimore v. Dickey* (2015) 239 Cal.App.4th 959, 971.)

The eight (8) matters and three (3) documents contained in the RFA are hereby deemed admitted and/or deemed genuine.

The Clerk shall provide notice of this Ruling to the parties forthwith. Plaintiff to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.

CERRUTI, et al. v. DEVOTO, et al.

17CV42758

(21CV45366)

**PLAINTIFF’S MOTION TO CONSOLIDATE COMPLAINTS FOR
QUIET TITLE TO THE
“GARIBALDI QUARTZ LODE MINING CLAIM”**

This is an unlimited jurisdiction quiet title action involving potential clouds over the chain of title associated with APN 052-016-009, Lot Number 45, Survey No. 3502 embracing a portion of Section 24, Township 3 North of Range 12 East M.D.M. in the Angels Mining District, commonly referred to as the Garibaldi Quartz Lode Mining Claim, (hereinafter referred to as “subject property”).

Before the Court is an unopposed motion to consolidate this civil action with a nearly-identical civil action filed by plaintiffs (21CV45366). Both lawsuits involve claims of adverse possession to the same property by the same putative owners against many of the same defendants. Both complaints were verified (though only the 2021 lawsuit was verified by *both* Gilbert and David). The cases are obviously identical to one another, and but for some anomalies, this motion would be easily granted.

First, there is a serious concern regarding service of the motion. Plaintiffs’ motion to consolidate was filed 09/29/21 in only the 2017 action, and served by regular mail on defendants Vicki Brazil, Andrew Brazil, and Joan McCarthy. However, additional named defendants in the 2017 action – Charles Devoto, Christina Huberty, Annie Austin, and Sarah Singer – were not served with the motion. These unserved defendants happen to be the only defendants named in the 2021 action, and as such the only parties who might have reason to object to the motion to consolidate have not been served with the motion. Although plaintiffs are of the opinion that at least three of the four unserved defendants are “probably deceased,” that is not sufficient for due process concerns.

Second, even without the service concern, the basis for the motion is suspect. Pursuant to CCP §1048(a), “when actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay.” Trials courts have wide discretion in this regard, and are to be guided by the precept that consolidation is supposed to enhance trial court efficiency and avoid inconsistency and undue confusion. (*Todd-Stenberg v. Dalkon Shield Claimants Trust*